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County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 23STCV12992 Hearing Date: June 24, 2026 Dept: 11

Final

Approval of Class Action Settlement

Department

SSC-11

Vega v. Bullitt, LLC, et al.

Case

Number: 23STCV12992

Hearing: June 24, 2026

TENTATIVE

RULING

The Court grants final approval of the

settlement and awards/approves the following: (1) $183,315 (1/3) for attorneys'

fees; (2) $17,132 in attorney costs; (3) $5,000 to the class representative for

an enhancement award; (4) $18,197 for claims administration costs; and (5) Payment of $8,250 (75% of $11,000 PAGA penalty) to the LWDA.

Class counsel is ordered to file a final report summarizing all distributions made pursuant to the approved settlement, supported by declaration. The Court will set a non-appearance date for submission of a final report for __________ ,2026.

CLASS DEFINITION AND ESSENTIAL MONETARY TERMS OF SETTLEMENT AGREEMENT

· “Class” means all persons paid wages on account of services provided for Defendant BLLC in the production of Motion Pictures in California during the Class Period. (Settlement, ¶1.5.)

“Class Period” means the period from February 7, 2019 to February 7, 2024. (¶1.12)

“Aggrieved Employee” means all persons paid wages on account of services provided for Defendant BLLC in the production of Motion Pictures in California during the PAGA Period. (¶1.4)

“PAGA Period” means the period from June 7, 2022 to February 7, 2024. (¶1.31)

There are three thousand twenty-five (3,025) were identified as Aggrieved Employees. (Declaration of Arron Weisel (“Weisel Decl.”), ¶6.)

Based on its

records, Bullitt estimates that, as of the date of this Settlement Agreement, (1) there are 3,032 Class Members and (2) there were 840 Aggrieved Employees. This is a material representation for Plaintiff to enter into this Settlement. Should the actual number of Class Members who worked within this time frame increase beyond 3,032 persons, the Gross Settlement Amount shall be increased proportionately, or $181.40 for each additional Class Member beyond 3,302. (¶8)

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The total number of Class Members who worked within this time frame was three thousand twenty-five (3,025) which does not exceed the Escalator Clause. (Weisel Decl., ¶6.)

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The Gross Settlement Amount ("GSA") is $550,000, non-reversionary. (¶3.1)

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The Net Settlement Amount ("NSA") of $ $315,935 is the GSA minus:

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Up to $183,315 (33.3%) for attorneys' fees (¶3.2.2);

Up to $17,500 for attorneys' costs (Ibid.);

Up to $5,000 for

an Enhancement Payment to the class representative (¶3.2.1.);

Up to $20,000 for

costs of settlement administration (¶3.2.3); and

Payment of $8,250

(75% of $11,000 PAGA penalty) to the LWDA (¶3.2.5).

Defendant

will separately pay for employer payroll taxes, which is not included in

the Gross Settlement Amount. (¶3.1)

· Funding of the Settlement: Bullitt

shall fully fund the Gross Settlement Amount, and also fund the amounts

necessary to fully pay its share of payroll taxes by transmitting the funds to

the Administrator no later than 21 days after the Effective Date

pursuant to Paragraph 1.18 (a)-(b). (¶4.3)

· Uncashed Checks: The Administrator will cancel all checks not

cashed by the void date (not less than 180 days after the date of mailing).

(¶4.4.1) For any Class Member or Aggrieved Person whose

Individual Class Payment check or Individual PAGA Payment check is uncashed and

cancelled after the void date, the Administrator shall inform the parties of

the total amount of uncashed checks (the “Uncashed First Checks”). Because the parties intend to provide as much relief as practicable to the Class Members, the Parties will facilitate a second distribution to the Class Members who cashed their checks during the first round (the “Second Distribution”). For the Second Distribution, the Class Members who cashed their checks during the first round shall be mailed a check in an amount equal share of the amount of the Uncashed First Checks after deductions for postage and handling by the Administrator. The second mailing shall be no later than 30 days after the 180-day void date for the Uncashed First Checks. (¶4.4.3)

For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the Second distribution void date, which shall be 180 days from the date of the Second Distribution, the Administrator shall transmit the funds represented by such checks to the California Controller’s Unclaimed Property Fund in the name of the Class Member thereby leaving no “unpaid residue” subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). The funds shall be transmitted to the Unclaimed Property fund no later than 30 days after the 180-day void date of the checks mailed in the Second Distribution. (¶4.4.4.)

· The proposed Settlement Agreement was submitted to the LWDA on October 15, 2025. (Declaration of Alan. Harris (“Harris Decl.”) ISO Preliminary Approval, Ex. 3.)

ANALYSIS

OF SETTLEMENT AGREEMENT

A. Does a presumption

of fairness exist?

The Court preliminarily found in

its Order on December 16, 2025, that the presumption of fairness should be applied. No

facts have come to the Court’s attention that would alter that preliminary

conclusion. Accordingly, the settlement

is entitled to a presumption of fairness as set forth in the preliminary

approval order.

B. Is the settlement

fair, adequate, and reasonable?

The settlement was preliminarily found to be

fair, adequate, and reasonable. Notice

has now been given to the Class and the LWDA.

Reaction of the class members to the proposed settlement.

Number of class members: 3,025 (Weisel

Decl., ¶5.)

Number

of notice packets mailed: 3,025 (Id.

at ¶8.)

Number

of undeliverable notices: 131 (Id. at

¶9.)

Number of

opt-outs: 0 (Id. at ¶14.)

Number

of objections: 0 (Id. at ¶15.)

Number

of participating Class Members: 3,025 (Id.

at ¶17.)

Individual

payment: $104.13 (Id. at ¶16.)

Number of

Aggrieved Employees: 3,025 (Id. at ¶20.)

PAGA

payment: $0.91 (Id. at ¶21.)

The Court finds that the notice was

given as directed and conforms to due process requirements. Given the reactions of the Class Members and

the LWDA to the proposed settlement and for the reasons set for in the Preliminary

Approval order, the settlement is found to be fair, adequate, and reasonable.

A.

Attorney

Fees and Costs

Class Counsel request $183,315 (1/3) in fees and litigation costs

and expenses in the amount of $17,132 to Class Counsel. (Motion ISO Fees, 11:15-17.)

The Settlement provides for attorney's fees up to $183,315 and costs of $17,500

(Settlement Agreement, ¶3.2.2); the class was provided notice of the requested

awards, and none objected. (Weisel Decl., ¶15 and

Exhibit A thereto.)

“Courts recognize two methods for

calculating attorney fees in civil class actions: the lodestar/multiplier

method and the percentage of recovery method.”

(Wershba at 254.)

Here, class counsel requests attorney fees using the percentage method,

as cross checked by lodestar. (Motion ISO Fees, pgs. 2-9.)

The fee

request represents 33% of the gross settlement amount

which is the average generally awarded in class actions. See In

re Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 558, fn. 13

(“Empirical studies show that, regardless of whether the percentage method or

the lodestar method is used, fee awards in class actions average around

one-third of the recovery.”).

Counsel has provided the following

lodestar information:

Biller

Hourly Rate

Hours

Lodestar

A. Harris

$890

120.0

$118,800

D. Garrett

$800

0.7

$623

P. Mohan

$750

3.3

$2,937

M. Gal

$650

66.7

$55,028

Paraprofessional

$210

55.5

$11,645

Anticipated

$600

25

$15,000

TOTAL

271.2

$204,043

(Harris Decl. ISO Fees, ¶28 and Exhibit 2

thereto.)

Therefore, through culmination,

Counsel will have spent over 271.2 hours in connection with this litigation, resulting in a lodestar of $204,043, which would require a negative multiplier to yield the requested fee amount. (Ibid.)

As for costs, class counsel has incurred and is requesting costs in the amount of $17,132. (Harris Decl. ISO Fees, ¶27 and Exhibit 3 thereto.) This is less than the settlement cap of $17,500 (Settlement Agreement, ¶3.2.2); and was disclosed in the notice to class members, to which there were no objections. (Weisel Decl., ¶15 and Exhibit A thereto.)

The costs in this case include, but are not limited to, filing costs ($2,062.64), service costs ($2,665.19), mediation ($3,275), case anywhere costs ($1,899.90), and expert costs (EconONE Research) ($6,192.58), court reporting costs ($2,165.25), and research costs ($553.93). (Harris Decl. ISO Fees, ¶27 and Exhibit 3 thereto.) The costs appear to be reasonable in amount and reasonably necessary to this litigation.

Based on the above, the recommendation is to award $183,315 in fees and $17,132 in costs.

B. Incentive Award to Class Representative

The Settlement Agreement provides for an inventive award of $5,000 to the named Plaintiff. (Settlement Agreement, ¶3.2.1.) Plaintiff Vega represents that his contributions to this litigation include, but are not limited to the following: having numerous conversations with counsel, providing documents, identifying witnesses, assisting with discovery, reviewing documents and filings, preparing for and participating in the mediation process, and reviewing the settlement. (Vega Decl., ¶¶3-7, 10.)

Based on the above, the recommendation is to award an enhancement award in the requested amount of $5,000.

C. Claims Administration Costs

The claims administrator requests $18,197 for the costs of administering the settlement. (Weisel Decl., ¶22.) This is less than the $20,000 maximum amount estimated at preliminary approval and disclosed in the notice to class members, to which there were no objections. (Id. at ¶15 and Exhibit A thereto.)

Based on all the work performed by the Claims Administrator, the recommendation is to award costs in the requested amount of $18,197.